



Jared DeMarinis
State Administrator

Katherine Berry
Deputy Administrator

Michael Summers, Chairman
Jim Shalleck, Vice Chairman
Diane Butler
Victoria Jackson-Stanley
Eric Bryant

Memorandum

TO: State Board Members

FROM: Allen Norfleet, Director
Division of Candidacy and Campaign Finance

DATE: March 26, 2026

SUBJECT: Waiver of Contracts – Persons Doing Public Business, Title 14 of the Election Law Article

Enclosed are the waiver requests submitted by businesses not to disclose certain information regarding the contracts they have with the public entities of \$200,000 and more.

Prior to the meeting please review each waiver request. The waiver request is valid for the one calendar year – covering the May and November semi-annual contribution disclosure statements. The statutory reference and reasons for not disclosing are referenced below for your convenience.

§ 14-104(c)(2). Relief from listing contracts.

The information required by paragraph (1)(iv) and (v) of this subsection may be omitted on the written approval of the State Board if the State Board finds that:

1. Requiring the information would be unduly burdensome.
2. The public interest would not be impaired substantially by the omission of this information.
3. The person filing the statement stipulated that the person has done public business during the reporting period.

Please feel free to contact me at 410-269-2856 if you have any questions.

6/10/2024

Contract Waiver List 3/26/26

1. Verizon

Mr. Allen Norfleet
Director Candidacy & Campaign Finance
Maryland State Board of Elections
151 West Street, Suite 200
Annapolis, MD 21401

Re: Waiver for Contract Disclosure

Dear Mr. Norfleet:

Pursuant to Md. Code Ann., Elec. Law § 14-104 and State Board of Elections regulations, Verizon Communications Inc. requests a waiver of the requirement to disclose public contract information as required by Md. Code Ann., Elec. § 14-104(c)(1)(iv) and (v), specifically, the name of each governmental unit with which the company did public business and the nature and amount of such business during the most recent six-month reporting period.

I have been granted authority by Verizon Communications Inc., as the company's political law counsel, to submit this waiver request, which we seek in the name of the ultimate parent company. As directed by the Business Contribution Disclosure System FAQs, we submit this waiver request several weeks in advance of the May 31, 2026 filing deadline. We are seeking a waiver for both the 2026 May filing and the 2026 November filing. We understand that a new waiver must be granted each year, and plan to submit a new request in 2027.

As delineated in Md. Code Ann., Elec. Law § 14-104(c)(2), the Board of Elections may waive the public contract information disclosure if: (1) requiring the information would be unduly burdensome; (2) the public interest would not be impaired substantially by the omission of this information; and (3) the person filing the statement stipulates that the person has done public business during the reporting period.

As discussed further in the attached memorandum submitted to the State Board of Elections in 2015 and in the attached letter issued by the State Attorney General in 1977, for the following reasons, we respectfully submit that all three factors are met.

- (1) It would be unduly burdensome to disclose the details of each governmental unit with which Verizon does public business. Verizon provides services to many state and local government units under a variety of contracts with a variety of Verizon operating units and subsidiaries and has done so for many decades. By way of

example, Verizon holds long-term (10+ years) “master contracts” with Maryland state agencies that allow state, county, and municipal governmental entities to purchase services. State, county, and municipal governmental entities make potentially hundreds of purchases through these master contracts each year. Identifying each governmental entity, the amounts billed for services, and the types of services provided would take an enormous amount of time to compile and would pose an undue burden on the company.

- (2) A waiver would not substantially impair the public interest in the disclosure of the contribution activity of those doing public business in the state, as Verizon has acknowledged by its registration with the State Board of Elections that it is doing public business in the state, and, if granted the waiver, Verizon intends to report contributions to any candidate cumulatively totaling at least \$500 during the six-month reporting period. This would include any contributions by Verizon operating entities or subsidiaries.
- (3) Verizon stipulates that, within the meaning of title 14 of the Maryland Election Law Code, it has done public business during the most recent six-month reporting period.

Thank you very much for your assistance and please let me know if we can provide anything further.

Respectfully submitted,

A handwritten signature in blue ink, appearing to read 'Evann Whitelam', with a long horizontal line extending to the right.

Evann Whitelam



Jeffrey A. Rackow
Assistant General Counsel

1 East Pratt St.
8th Fl.
Baltimore, MD 21202
Voice: (410) 393-3044
Fax: (410) 393-4078
jeffrey.rackow@verizon.com

February 4, 2015

Via FedEx Overnight Delivery

Mr. Jared DeMarinis
Maryland State Board of Elections
151 West Street, Suite 200
Annapolis, MD 21401

RECEIVED

FEB 05 2015

STATE BOARD OF ELECTIONS

Re: Waiver for Contract Disclosure

Dear Mr. DeMarinis:

In accordance with the revised section 14-104(c)(2) of the Maryland Election Law Code, and to whatever extent necessary, Verizon Communications Inc. ("Verizon") respectfully requests a waiver of the requirement to file the information specified in subsections 14-104(c)(1)(iv)&(v). Verizon is registering and filing its semiannual report through the new online electronic filing system, and is checking off the box on that electronic form to request a waiver for contract disclosure.¹

Subsections 14-104(c)(1)(iv)&(v) require the name of each governmental unit with which the person did public business and the nature and amount of such public business during the six-month reporting period. Subsection 14-104(c)(2) waives the reporting of those details if the Board finds that it would be unduly burdensome, the public interest would not be substantially impaired, and the filer stipulates that it does public business.

The Board should find each of these elements and waive Verizon's reporting of the subsection 14-104(c)(1)(iv)&(v) information. Verizon's operating units have provided services to state and local governmental units under various contracts for many decades. The principal operating entity in Maryland is Verizon Maryland LLC. Its predecessor obtained a waiver from the State Attorney General by letter dated September 27, 1977. A copy of that waiver letter is enclosed. In granting the requested waiver, the letter concluded, "If you desire to omit this information from your annual report in subsequent years, you may simply advise us whether there has been any change in the

¹ This letter follows your suggestion to send to your attention any statement in further support of the request (beyond the reason stated in the small field provided on the electronic form).

status of your request.” Accordingly, it is not clear that a new waiver is required, but, out of an abundance of caution, and in light of the recent modifications to the form and content of the required reporting, Verizon respectfully requests that the Board make the requisite findings and grant a waiver under the current law.

First, it would be unduly burdensome to report the details of each governmental unit with which Verizon does public business. Verizon, through its operating units, has many contracts with numerous state and local governmental units. The new threshold for “doing public business” under the statutory changes that took effect January 1, 2015, is at least \$200,000 per contract over the life of that contract, and Verizon stipulates that some of its contracts far exceed this threshold.

For example, one such state procurement contract well in excess of that threshold was recently awarded on November 21, 2014 by the State Department of Information Technology to both Verizon Maryland LLC and its affiliate MCI Communications Services, Inc. d/b/a Verizon Business Services² (RFP #F50B4400028). This is for a “Master Contract” for the provision of “Data Telecommunications Services.” The term of the contract is for about twelve years. Over the course of that term, a large number of different governmental units may well receive services under that Master Contract, making it unduly burdensome to report details of all different state units that may obtain data telecommunications through the same master. Another contract that was awarded on June 25, 2014 to Verizon Maryland LLC (RFP #060B3490013) is for the provision of “Local Telecommunications Services” for at least five years, with the State having the right to exercise renewals for extended periods of time.³ Over the term of the contract, many different governmental units may obtain local telecommunications services through this contract, too. Another example is the current “Participating Addendum” contract dated November 15, 2012, for wireless communications services between Cellco Partnership d/b/a Verizon Wireless and the State acting through the Department of Information Technology on behalf of all Maryland State agencies.⁴ That contract runs through October 2016, and allows for the provision of mobile wireless services not only for State agencies, but also allows county and municipal governmental entities to purchase such services at the same maximum prices as the State agencies under this contract. As a result, there may be many different state and local entities purchasing services through this contract. In all of these examples, and through other similar existing contracts, trying to compile the names of every unit of every governmental entity purchasing Verizon’s telecommunications and other services, the nature of those services for each such individual unit, and the amounts billed for such services for each individual unit would be enormously wasteful and impose an undue burden.

² Given that Verizon has various operating and contracting units, and to ensure comprehensive reporting under the newly revised laws and electronic reporting format, Verizon is filing its new semiannual reports and is seeking this waiver in the name of its ultimate parent corporation, Verizon Communications Inc., to encompass the public business and applicable contributions of all subsidiaries of which it owns or controls at least 30%. Verizon intends to include all attributed contributions in its reporting going forward as well.

³ Although Verizon is not now a monopoly, certain contracts such as this could still represent sole source procurements.

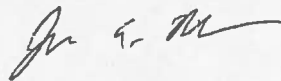
⁴ This Participating Addendum is to the “WSCA Master Service Agreement,” Contract No. 1907. The Maryland Mobile Devices and Services (MDS) Master Contract uses Blanket Purchase Order (BPO) No. 060B3490004.

Second, a waiver would not substantially impair the public interest. Under the new reporting laws, reporting is required only for applicable contributions, which (as revised, under section 14-101(b)) are defined as those made to a candidate for an office of a governmental entity with which the person is doing public business. If granted the waiver, Verizon intends to report contributions to any candidate cumulatively totaling at least \$500 during the six-month reporting period (under section 14-104(c)(1)(i)). This is consistent with the fact that Verizon does public business not only under multiple state contracts, but also with numerous localities as well. In other words, if there are any local governmental units with which Verizon is not doing public business, with a waiver Verizon will still report contributions meeting subsection 14-104(c)(1)(i)'s threshold even for candidates for those local governments. In that manner, a waiver will not impair the public interest, because all contributions that must be reported under the statutes will be reported. Indeed, if anything, more contributions will be reported than would be required if no waiver were granted. In any event, all applicable contributions that must be reported under the newly revised statutes will be reported and publicly disclosed through the Board's new electronic system, regardless of whether the nature and amount of the Verizon services purchased by each individual governmental unit within the State are separately detailed.

Third, Verizon does stipulate that, within the meaning of title 14 of the Election Law article, it is doing public business across the State and has done so during the most recent reporting period. For the reasons stated above, Verizon Communications Inc. respectfully requests a waiver of the requirement to file the information specified in subsections 14-104(c)(1)(iv)&(v).

If you have any questions regarding this matter or need further information to consider this request, please feel free to call me.

Respectfully submitted,



Jeffrey A. Rackow

Enclosure

cc: Anthony A. Lewis



JOHN F. OSTER
GEORGE A. NELSON
SECRETARY OF THE GENERAL

THE ATTORNEY GENERAL

ONE SOUTH CALVERT STREET

14TH FLOOR

BALTIMORE, MARYLAND 21202

301-363-3737

September 27, 1977

J. William Sarver, Esquire
General Attorney
C & P Telephone Company
320 St. Paul Place
Baltimore, Maryland 21202

Dear Mr. Sarver:

In your letter dated August 25, 1977, you requested, pursuant to the recently amended provisions of Maryland Annotated Code, Article 33, Section 30-2, our approval to omit the names of the governmental agencies of the State, counties and municipal corporations with which the Chesapeake and Potomac Telephone Company of Maryland does business and the amounts of such business from its annual statement of contributions filed with the Secretary of State. You have indicated in your letter that the effort and expense required to obtain this information is unduly burdensome and that the public interest would not be substantially impaired by the omission. Additionally, you have indicated that the specific computer study needed to retrieve this information requires the expenditure of several hundreds of dollars which must ultimately be recovered from the Company's customers in the form of higher rates for communications services.

Chapter 518 of the Laws of Maryland of 1977, effective July 1, 1977, significantly amended Article 33, Section 30-2, which required that persons or corporations (1) making contributions to a candidate for elective office in an election, and (2) doing business in excess of \$10,000 a year with the State or any political subdivision file a report stating inter alia the "name of each agency of the State ... or political subdivision with which the person did business" and "the nature and amount of the business done". Section 30-2, as amended, contains all of its previous requirements, but with some important qualifying language:

"(c) The statement shall be under oath and shall contain:

(i) The names of all candidates to whom a contribution was made or caused to be made and the office for which the candidate sought election;

(ii) The amount of the aggregate contributions to each candidate;

(iii) The name of each agency of the State, a county, incorporated municipality, or other political subdivision with which the person did business [;]. However, this information may be omitted upon the written approval of the Attorney General. The Attorney General may grant approval if he finds that it would be unduly burdensome to require this information, that the public interest would not be substantially impaired by its omission, and that the person submitting the statement stipulates that he has done the requisite business in the amount of \$10,000 or more during the period in question;

(iv) The nature and amount of business done with each [such] agency [;]. However, information concerning the amount of business done with each agency may be omitted upon the written approval of the Attorney General. The Attorney General may grant approval if he finds that it would be unduly burdensome to require this information, that the public interest would not be substantially impaired by its omission, and that the person submitting the statement stipulates that he has done the requisite business in the amount of \$10,000 or more during the period in question;

(v) If the business was done or the contribution was made by another person and is attributed to the person filing the statement under §30-3, the name of the person who did the business or made the contribution, and the relationship of that person to the person filing the statement."
(Language of amendment underscored).

Before proceeding to respond to your specific request, we would note at the outset that in 60 Opinions of the Attorney General 223 (1975), we answered a number of inquiries about Article 33, Sections 30-1 et seq. and particularly noted the following features:

of the statute: its broad definitions of "business" (Section 30-1(c)) and "contributions" (Section 30-1(e)), its specific attribution requirements, (Section 30-3), and the liberal construction to be given its full disclosure requirements (Section 30-4). House Bill 112 provides an exemption from the requirements of Article 33, Section 30-1 et seq., which evidences a clear intent by the General Assembly to provide relief from undue administrative burden caused to some by fully complying with the provisions of Section 30-1 et seq. However, since it permits an exception to what is obviously a remedial statute, we believe that the General Assembly also intended that our approval pursuant to this exception be limited to those individuals or corporations which clearly meet the statutory requirements.

There are three such requirements. First, it must be "unduly burdensome" to require this information. You have informed us that in order to obtain this information, which is not produced in the required form in the normal conduct of the Company's business, it must be retrieved by a specific computer study which amounts to the expenditure of several hundreds of dollars. This cost is apparently passed on to the Company's customers in the form of higher rates for communications services. Further, you have submitted that the Company believes that the cost of producing and verifying the information is unwarranted in light of its limited value. The list that you file contains a list of names of the agencies to which telephone service is provided, and a figure representing the total amount of the services billed to each agency. You pointed out in your letter that as a public service company, the Company has a duty to serve these agencies and the public already knows that telephone services are provided to virtually every governmental agency in this State. Therefore, you feel that it would be unduly burdensome to require the disclosure of this information, especially on an annual basis. In our opinion, compiling this information would constitute precisely the sort of "undue burden" which the amendment is designed to eliminate.

The second requirement is that "the public interest would not be substantially impaired by its omission." We view this as the most difficult requirement in light of the clear public interest served by Section 30-1 et seq., i.e., exposing to public scrutiny those individuals and corporations making political contributions and carrying on substantial (in excess of \$10,000 a year) public business. However, this public interest is not truly served by applying these requirements to corporations, like the Chesapeake and Potomac Telephone Company, which are public utilities and therefore closely regulated by both the State and federal governments. For example, the Public Service Commission is specifically charged to

"...supervise and regulate all public service companies subject to its jurisdiction to assure their operation in the interest of the public and to promote adequate, economical, and efficient delivery of utility services in the State without unjust discrimination, giving consideration to the public safety, the economy of the State, the conservation of natural resources, and the preservation of environmental quality."

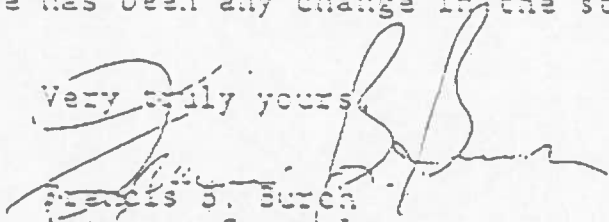
Article 78, Section 55, Annotated Code of Maryland. To these ends, the Commission is further charged with enforcing specific legal requirements as to "financial conditions, capitalization, franchises, plant, manner of operation, rates and service". Ibid.

Nor is this strict governmental regulation the only factor which distinguishes public utilities for purposes of the statute here in question. At least as important is the fact that they are true monopolies and thus by definition have no competitors in providing their services.¹ Hence, a listing of their substantial public business is neither a necessary nor helpful indication of their political influence or the effect, if any, of their political contributions. We believe it is not contrary to the public interest, but substantially in the public interest, not to require this information in these circumstances. To require the information would create a costly administrative burden, and yet would yield no helpful or significant information to the public. Thus, we believe the second requirement has also been met here.

The third and final requirement is simply that the corporation submitting the statement stipulates that it has done the requisite business in the amount of \$10,000 or more during that period. We note that you have so stipulated and so this requirement has been met.

Accordingly, we hereby approve your request pursuant to Article 33, Section 30-2(c) (iii) and (iv) for the report covering the period ending July 31, 1977. If you desire to omit this information from your annual report in subsequent years, you may simply advise us whether there has been any change in the status of your request.

Very truly yours,


Francis S. Burch
Attorney General

FB3:mpk

1. However, we would note that in fields in which public utilities do not enjoy a monopoly -- for example, sale of appliances -- the above does not apply.

(ii) 1. The statements required by subparagraph (i) of this paragraph shall cover 6-month reporting periods ending on January 31 and July 31.

2. A statement required by subparagraph (i) of this paragraph shall be filed within 5 days after the end of the applicable reporting period.

(c) Contents and oath. — (1) The statement required by this section shall be made under oath and shall contain:

(i) the name of each candidate, if any, to whom one or more applicable contributions in a cumulative amount of \$500 or more were made during the reporting period;

(ii) the office sought by each candidate named in item (i) of this paragraph;

(iii) the amount of aggregate contributions made to each candidate named in item (i) of this paragraph;

(iv) the name of each unit of a governmental entity with which the person did public business during the reporting period;

(v) the nature and amount of public business done with each unit of a governmental entity; and

(vi) if the public business was done or the contribution was made by another person but is attributed to the person filing the statement, the name of the person who did the public business or made the contribution and the relationship of that person to the person filing the statement.

(2) The information required by paragraph (1)(iv) and (v) of this subsection may be omitted on the written approval of the State Board if the State Board finds that:

(i) requiring the information would be unduly burdensome;

(ii) the public interest would not be impaired substantially by the omission of this information; and

(iii) the person filing the statement stipulates that the person has done public business during the reporting period.

(d) Retaining statements; public availability. — The State Board shall retain each statement filed under this title as a public record for at least 2 years after its receipt and shall make the statement publicly available on the Internet.

(e) Filing. — A person shall file a statement required under this section in an electronic format required by the State Board.
(2013, ch. 419, § 1.)

Amendment effective January 1, 2015. — Section 1, ch. 419, Acts 2013, effective January 1, 2015, rewrote (b) and (c)(1)(i); in the introductory language of (c)(2) substituted "State Board" for "Attorney General" twice; deleted

the (d)(1) designation and deleted (d)(2); in (d) substituted "publicly available on the Internet" for "available for public examination and copying during normal office hours"; and rewrote (e).

§ 14-105. Attributable contributions [Subject to amendment effective January 1, 2015; amended version follows this section].

(a) *Business entities.* — Except as provided in subsection (f) of this section, an applicable contribution made by an officer, director, or partner of a business entity doing public business shall be attributed to the business entity.

14-104(CX)